

TENTATIVE RULING

Case: **Veber v. Traverso**
 Case No. CV-2024-2606

Hearing Date: **January 27, 2026** **Department Fourteen** **9:00 a.m.**

The Court, in its discretion, considers plaintiffs Yuri Veber and Mila Veber’s untimely opposition. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

Defendants Norcal Gold, Inc., Murre Traverso, and Suzanne Kimmel’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendants’ motion for mandatory relief is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) Defendants do not seek to set aside a resulting default, default judgment, or dismissal. (*Ibid.*; Corsaut decl., ¶¶ 2-12.) Defendants have failed to demonstrate that mandatory relief pursuant to section 473(b) is available under the circumstances. (See *English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 142-149.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.